No. 25-12813 (consolidated with No. 24-11892)

IN THE UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT

FLORIDA STATE CONFERENCE OF BRANCHES AND YOUTH UNITS OF THE NAACP, *et al.*,

Plaintiffs-Appellees,

v.

CORD BYRD, *et al.*,

Defendants-Appellants.

On Appeal from the United States District Court for the Northern District of Florida

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STATEMENT REGARDING ORAL ARGUMENT

While the challenged provision in this case implicates significant constitutional rights, the issues raised on appeal are straightforward. Appellees maintain that this appeal can be resolved on the papers based on the statute's clear violations of well-established constitutional law. If the Court determines that oral argument would help facilitate resolution of the appeal, Appellees welcome the opportunity to participate.

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INTRODUCTION

The Citizenship Requirement categorically bars all noncitizens from engaging in canvassing work on behalf of third-party voter registration organizations. It is a textbook example of facial discrimination on the basis of alienage—precisely the type of classification the Supreme Court has long held triggers strict scrutiny under the Equal Protection Clause.

Rather than defend the statute as written, the State seeks to complicate this straightforward analysis by inventing distinctions that do not exist in the statutory text, invoking inapposite precedent, and proposing novel legal tests with no grounding in equal protection jurisprudence. This Court need not indulge the State's tortured efforts to rewrite either the statute at issue or the governing precedent. The Supreme Court and Eleventh Circuit have consistently applied strict scrutiny to laws that classify on the basis of alienage, and the State offers neither a compelling interest nor a narrowly tailored means to justify the Citizenship Requirement's sweeping exclusion. The district court correctly held that the Citizenship Requirement facially violates the Fourteenth Amendment and narrowly enjoined its enforcement. This Court should affirm.

STATEMENT OF THE CASE

I. Factual Background

In May 2023, Florida enacted into law SB 7050, imposing new rules and restrictions governing third-party voter registration organizations ("3PVROs"). This

appeal involves only one provision: SB 7050's Citizenship Requirement, which requires all 3PVROs to affirm "that each person collecting or handling voter registration applications" on their behalf "is a citizen of the United States of America," and subjects the 3PVROs to a $50,000 fine "for each such person who is not a citizen." Fla. Stat. § 97.0575(1)(f).

II. Procedural Background

A. The district court preliminarily enjoins the Citizenship Requirement.

Shortly after Governor DeSantis signed SB 7050, three sets of plaintiffs brought constitutional challenges to several of its provisions, including the Citizenship Requirement. All three sets of plaintiffs moved for a preliminary injunction of the Citizenship Requirement, and the district court held a consolidated preliminary injunction hearing. On July 3, 2023, the district court granted Plaintiffs' motion for a preliminary injunction barring the State from enforcing the Citizenship Requirement. The district court determined that Plaintiffs had established standing to challenge the Citizenship Requirement and that Plaintiffs had shown a substantial likelihood of success on the merits. The district court concluded that the statute's facial classification based on alienage triggered strict scrutiny, rejected the State's request to parse the Citizenship Requirement into separate standards for undocumented and lawfully present noncitizens, and rejected the State's argument that the classification was subject to the political function exception.

STANDARD OF REVIEW

In an appeal from a bench trial, the Court of Appeals "review[s] de novo conclusions of law and the application of the law to the facts," but reviews findings of fact for clear error. *League of Women Voters v. Fla. Sec'y of State*, 66 F.4th 905, 921 (11th Cir. 2023). Courts of appeal will not find clear error "unless our review of the record leaves us with the definite and firm conviction that a mistake has been committed." *Id.* (quotation omitted).

SUMMARY OF ARGUMENT

The Citizenship Requirement facially prohibits all noncitizens from engaging in canvassing work on behalf of 3PVROs. Because the statute expressly classifies individuals based on citizenship status, it discriminates on the basis of alienage and is therefore subject to strict scrutiny under the Equal Protection Clause. An unwavering line of Supreme Court precedent has held that laws imposing categorical restrictions on noncitizens—without distinction among different classes of lawful or unlawful status—trigger strict scrutiny. Rather than defending the Citizenship Requirement under that settled standard, the State urges the Court to adopt a novel, fragmented approach by reading into the statute distinctions among noncitizens that the text does not contain. But courts assess facial equal protection challenges based on the classifications the legislature actually enacted, not those it might have drawn.

Because the Citizenship Requirement imposes a sweeping ban on all noncitizens, binding precedent forecloses the State's attempt to apply different levels of scrutiny to hypothetical subcategories. The State's reliance on *United States v. Salerno* is misplaced; Circuit precedent dictates that, rather than imposing a separate threshold test for facial challenges, *Salerno* merely describes the result when a statute fails the applicable constitutional standard. And even if *Salerno* applied, it would be irrelevant here because the district court limited the scope of the injunction to the plaintiffs before it.

ARGUMENT

I. The Citizenship Requirement is subject to strict scrutiny.

A. Laws classifying individuals on the basis of citizenship are subject to strict scrutiny.

"As a general matter, a state law that discriminates on the basis of alienage can be sustained only if it can withstand strict judicial scrutiny." *Bernal v. Fainter*, 467 U.S. 216, 219 (1984); *see also Examining Bd. v. Flores de Otero*, 426 U.S. 572, 601–02 (1976) (applying "strict judicial scrutiny" for limitations on state civil engineering licenses based on alienage (quotation omitted)); *Sugarman v. Dougall*, 413 U.S. 634, 642 (1973) (applying "close scrutiny" to statute "which denies all aliens the right to hold positions in New York's classified competitive civil service"); *In re Griffiths*, 413 U.S. 717, 721 (1973) (applying strict scrutiny to a state law that excluded all noncitizens from being licensed as attorneys); *Nyquist v. Mauclet*, 432 U.S. 1, 12 (1977) (applying "close judicial

scrutiny" to strike down law banning certain classes of noncitizens from college loan assistance program). In so holding, the Supreme Court has recognized that "aliens as a class are a prime example of a 'discrete and insular' minority for whom such heightened judicial solicitude is appropriate." *Graham v. Richardson*, 403 U.S. 365, 376 (1971) (applying "strict judicial scrutiny" to strike down state laws denying welfare benefits to noncitizens).

Because the Citizenship Requirement expressly classifies Florida residents on the basis of alienage, it is subject to strict scrutiny. *See Shen v. Comm'r, Fla. Dep't of Agric. & Consumer Servs.*, 158 F.4th 1227, 1251 (11th Cir. 2025) ("Alienage generally refers to whether a person is a United States citizen."). Florida's Citizenship Requirement distinguishes between two categories of Florida residents: citizens and noncitizens. Fla. Stat. § 97.0575(1)(f). While the Eleventh Circuit has applied lower levels of scrutiny to laws that regulate only undocumented noncitizens, *see, e.g.*, *Estrada v. Becker*, 917 F.3d 1298, 1301 (11th Cir. 2019) (applying rational basis review to statute prohibiting individuals "not lawfully in the United States" from attending certain Georgia universities (quoting O.C.G.A. § 50-36-1(d)(7))); *LeClerc v. Webb*, 419 F.3d 405, 410 (5th Cir. 2005) (applying rational basis review to requirement that individuals be "a citizen of the United States or a resident alien thereof" to be admitted to the bar), the Citizenship Requirement bars all noncitizens from engaging in voter registration, without exception, *see* Fla. Stat. § 97.0575(1)(f) (requiring "affirmation that each person collecting or handling voter registration applications on behalf of the third-party voter

registration organization is a citizen of the United States of America"). Its categorical restriction on all noncitizens is thus the emblematic "classification[] based on alienage" that triggers strict scrutiny. *Graham*, 403 U.S. at 372.

The State admits—consistent with the statutory text—that "[a]ll noncitizens are excluded from collecting or handling applications regardless of their alienage status." But in an effort to salvage the facially unconstitutional statute, the State urges the Court to read into the statute distinctions among different noncitizen subgroups that the text of the law plainly does not make and then apply different levels of scrutiny to each of them. The State concedes that strict scrutiny applies to claims brought by lawful permanent residents but insists rational basis review applies as to "all other aliens." That contention misses the point. Because the statute draws a single, undifferentiated alienage-based classification, the relevant inquiry is whether the classification itself can survive strict scrutiny—not whether the State can imagine distinct constitutional results for groups the law does not distinguish.

For all of these reasons, the Citizenship Requirement violates the Equal Protection Clause; it is a blunt instrument that broadly discriminates against all noncitizens and therefore triggers—and fails—strict scrutiny.[1]

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[1] The citizenship requirement would fail even under rational basis review. First, the record shows it was motivated by animus against noncitizens, which cannot constitute a legitimate government interest. *Romer v. Evans*, 517 U.S. 620, 634 (1996). Second, as the district court found, there is no "link between classification and objective." *Romer*, 517 U.S. at 632. Despite multiple opportunities, Defendants have produced no evidence

CONCLUSION

The Court should affirm the district court's order permanently enjoining enforcement of the Citizenship Requirement against Plaintiffs.

Respectfully submitted,

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that a noncitizen has engaged in any bad act related to voter registration, rendering the citizenship requirement entirely disconnected from the State's claimed interest. *See supra* Statement of the Case.

CERTIFICATE OF COMPLIANCE

This brief complies with the type-volume limit of Fed. R. App. P. 32(a)(7)(B) because, excluding the parts of the brief exempted by Fed. R. App. P. 32(f) and 11th Cir. R. 32-4, it contains 1,428 words.

This brief complies with the typeface requirements of Fed. R. App. P. 32(a)(5) and the type-style requirements of Fed. R. App. P. 32(a)(6) because it has been prepared in a proportionally spaced typeface, EB Garamond, 14-point, set with Typst 0.15.0.

s/ Frederick S. Wermuth
Attorney for Plaintiffs-Appellees

Dated: December 31, 2025

CERTIFICATE OF SERVICE

I certify that on December 31, 2025, I filed the foregoing document with the Clerk of the Court for the United States Court of Appeals for the Eleventh Circuit through the CM/ECF system, which serves notice of the filing on all registered counsel of record.

s/ Frederick S. Wermuth
Attorney for Plaintiffs-Appellees

Dated: December 31, 2025